

File No: EXP202103980

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On October 2, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against SINDICATO LIBRE DE TRANSPORTE (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202103980

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 29, 2021.

In this complaint, the complainant stated that a member of SINDICATO LIBRE DE TRANSPORTES (hereinafter XXX) had disseminated a modified version of their payslip in a WhatsApp group, to illustrate to the other members of the union section in the company CON AIR BUSINESS CLASS S.L., how the amounts associated with the different concepts would appear if the new agreement were adopted.

This action took place without the consent of the owner of the payslip, which would cause harm to their personal and professional honor, as private data such as their ID number or Social Security number were exposed.

The complainant also blames the company that manages and safeguards the payslips, ***NÓMINAS.1, for having contributed voluntarily or involuntarily to the leakage of the document. The complainant states that they became aware of the fact on March 5, 2021, thanks to another member of the group.

The complaint is accompanied by a copy of the payslip exposed in the WhatsApp group, which was modified by the union member, as well as the original.

A screenshot of the WhatsApp group "XXX-***NÓMINAS.1" is also provided, showing the part of the conversation where the payslip was disseminated, and a video taken at the moment of consulting the WhatsApp group.

Along with the notification, the following is provided:

- Payslip of the complainant dated February 2021, which includes name and surname, ID number, Social Security affiliation number, professional category, position, contribution group, and seniority along with salary data.
- Payslip of the complainant dated January 2021, which includes the mentioned data and different salary data. The complainant states that this payslip is manipulated.
- Screenshot of the WhatsApp message where part of a payslip is displayed and a pdf file named "NUEVO CONVENIO.pdf" sent by "XXX ***NÓMINAS.1" on March 5, 2021, is attached.
- Video showing the WhatsApp message and displaying the content of the document "NUEVO CONVENIO.pdf" corresponding to the modified payslip of the complainant.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGGDD), the aforementioned complaint was forwarded to XXX, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on November 10, 2021, as stated in the acknowledgment of receipt in the file.

On December 10, 2021, a response was received by this Agency indicating, among other issues, that the described facts “were the result of a human error by a worker of the organization, who disseminated the payslip of the affected person in violation of their policies and demonstrating a complete lack of professionalism.”

THIRD: On December 13, 2021, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to not admit the complaint for processing.

The resolution was notified to the complainant on December 17, 2021, according to the acknowledgment of receipt that appears in the file.

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FOURTH: On January 10, 2022, the claimant filed an optional appeal for reconsideration (RR/00020/2022) through the Electronic Registry of the AEPD, against the resolution issued in the file EXP202103980, in which they express their disagreement with the resolution, stating that XXX does not inform how they accessed their payslip, as the claimant has no relationship with them, and additionally states that the union has no representation in the company.

FIFTH: On August 2, 2022, the appeal filed was sent to XXX and to the company CON AIR in accordance with the provisions of Article 118 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, for the purpose of allowing them to submit allegations and present the documents and evidence they deemed appropriate.

The notification of the hearing process took place, in the case of XXX on August 3, 2022, and in the case of CON AIR on August 12, 2022, through the electronic notification service, according to the certificate included in the file.

On August 18, 2022, a response was received from XXX referencing the response sent by the Union on December 10 and 25, 2021, in which it is stated:

- The Union created the WhatsApp group with the consent of the affiliates and authorized workers.
- An authorized employee of the Union sent a mock payslip without authorization and without anonymizing it, violating the instructions regarding this matter.
- The Union states that the source of the data for the preparation of the mock payslip was obtained from the simulation program used regularly and that the data from the program is obtained from the various meetings that occur in the normal course of union activity, specifically in the meetings held in the context of collective negotiations.
- Furthermore, it states that the payslip predominantly contains information that does not correspond to reality, as its purpose was to simulate the economic outcome of the scenario presented in the collective negotiation.
- The Union has informed about the measures taken upon receiving the transfer of the complaint.

Regarding the measures:

- Apologized to the claimant
- Appointed a DPD
- Sent a communication about the DPD
- Sent a circular to the workers
- Resent the policy on the use of information systems
- Disseminated a guide on best practices
- Provided training to its employees
- Provided data protection policy

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On September 20, 2022, a response was received from the company CON AIR in which it is reported:

- The entity is involved in various litigations with the claimant (documents 1 to 3).
- The sole administrator of CON AIR was the entity MERIT CONSULTORES SL (MERIT), which is part of the group of companies of XXX ***NÓMINAS.1 MOBILITY MADRID SL (***NÓMINAS.1) and had delegated all administrative, labor, and banking management to ***NÓMINAS.1 since the incorporation of the company in 2016 to provide an integral management service, including the preparation of the payslip and its payment. (document 4 employment contract of the claimant with the entity where it is stated that the data will be processed by ***NÓMINAS.1)
- Since September 9, 2021, the provision of the service has ended (Document No. 5 the certificate of delivery of all documentation of CON AIR by ***NÓMINAS.1 upon termination of its commercial relationship with the group XXXXX-***NÓMINAS.1.

SIXTH: The Director of the Spanish Agency for Data Protection resolves to uphold the appeal for reconsideration, proceeding with the opening of preliminary inspection proceedings on October 13, 2022.

SEVENTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

- The company CON AIR BUSINESS CLASS, S.L. is a Spanish limited liability company whose activity is "Urban and suburban land transport of passengers." It is recorded in ASEXOR that it has 19 employees and is classified as "Self-employed." In the Historical record of social bodies, MERIT CONSULTORES SL appears as the sole administrator.
- The company XXX ***NÓMINAS.1 MOBILITY MADRID SL is a Spanish limited liability company, a subsidiary of the Group JAP GROUP INVERSIONES Y RECURSOS PATRIMONIALES SL. It has 20 employees and its activity is "Other types of land transport of passengers n.e.c."
- The entity MERIT TRANSPORTER SL is a Spanish limited liability company, a subsidiary of the group MERIT CONSULTORES SL. It has 18 employees and its activity is "Urban and suburban land transport of passengers."

On November 15, 2022, a request for information was sent to the company CON AIR, and from the responses received on December 13, 2022, and February 9, 2023, it is inferred:

- Regarding the origin of the claimant's payslip, the entity reiterates that on September 1, 2020, a total management service contract was signed with MERIT, including the administration of the company, as MERIT was the sole administrator and all employees of CON AIR are drivers.

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Considering that the dissemination of the payroll of the claimant occurred around March 5, 2021, the date on which the contract between the two entities was in force.

In this regard, the entity has provided a copy of the contract signed between MERIT and CON AIR, dated September 1, 2020, for the provision of administrative and labor management and advisory services. The contract contains clauses on Confidentiality and Data Protection. In the data protection section, it states that the type of data processed corresponds to: identifiers, personal characteristics, social circumstances, professional data, employment details, economic, financial, and insurance data. And in this same section, it is noted that the data processor will carry out the operations of: collection, registration, organization, structuring, storage, adaptation, modification, consultation, use, communication, restriction, deletion, and destruction (Document 1).

Furthermore, the entity states that MERIT is part of the ***NÓMINAS.1 group of companies and had delegated all management to them. In daily operations, this means that CON AIR interacted directly with ***NÓMINAS.1, invoicing their services directly to CON AIR.

- The entity has provided an indefinite employment contract of the claimant with CON AIR, which includes a clause regarding the communication of data to ***NÓMINAS.1. "The worker consents that the data detailed in their curriculum vitae, employment contract, or any other document derived from the employment relationship, be processed by XXX ***NÓMINAS.1 MOBILITY MADRID SL for the purpose of maintaining an employment relationship with the company, as well as carrying out personnel management. In the event of any modification of their data, the worker agrees to communicate them in writing in order to keep their data updated" (Annex 2).

The entity states that it does not have detailed information on the origin of the payroll as it was delegated to MERIT and ***NÓMINAS.1.

The entity has provided a copy of the Delivery Record of the documentation from ***NÓMINAS.1 at the end of the service provision, dated September 9, 2021.

- The entity states that the simulation program for the preparation of payroll does not belong to, nor is it used by, the company. And regarding paper documents, the contract signed with MERIT refers to confidentiality. The custody of the payroll belonged to ***NÓMINAS.1.

- The entity has provided a list of technical and organizational measures implemented in the company. It has also provided a copy of the Risk Analysis of Payroll Management and Contracts along with the corrective measures (document 4).

In the response dated 09/02/2023, the entity has provided an agreement with the claimant where it admits that CON AIR is not responsible for the leak of the payroll among the WhatsApp group of the members of XXX and therefore has withdrawn the claim, requesting that, being the only interested party and with no third parties affected, these proceedings be archived concerning their entity.

On March 23, 2023, a request for information was sent to the company ***NÓMINAS.1, and from the response received on April 18, 2023, it is inferred:

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- ***NÓMINAS.1 is an international company whose main activity is the management of licenses for Transport Vehicles with Drivers (VTC) for third parties.

- ***NÓMINAS.1 has not had a direct contract with CON AIR but was responsible on behalf of MERIT for the administrative and labor management and advisory services of said company, with its knowledge and authorization until September 30, 2021. (Document 3 is a copy of the contract for accounting services and tax advice signed between both companies).

- The payroll of CON AIR employees was provided to the company through a shared Google Drive (special Google Drive folders that allow storing, searching, and accessing files in a space shared by a team) with the designated individuals from the company, and the payroll was delivered to the workers through a payment portal managed by a third company, where both the recipient and the sender must identify themselves with a username and password.

- The entity states that the claimant was an employee of XXX and (...). The entity states that it is aware of the dissemination of a modified payroll by XXX and that it was not disseminated by ***NÓMINAS.1 or CON AIR according to a meeting record between both companies with the claimant dated March 10 and 17, 2021.

- The entity states that it does not and has not simulated the payroll of CON AIR employees and that access to employee data was granted to management and the individuals in administration responsible for payroll management.

- The entity has provided a copy of the communication to employees regarding data protection.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons concerning

the processing of personal data and the free movement of such data (GDPR) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since XXX collects and retains, among others, the following personal data of natural persons: name and surname, address, ID number, social security number, among other treatments.

XXX carries out this activity in its capacity as the data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter, security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In this case, there is a personal data security breach under the circumstances mentioned above, categorized as a confidentiality breach, as a modified version of the claimant's payroll was disseminated in a WhatsApp group, which included their name and surname, address, ID number, and social security number, among other data.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f) of Article 5 of the GDPR. For its part, the security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which govern the security of processing, the notification of a personal data security breach to the supervisory authority, and the communication to the data subject, respectively.

III

Principle of Integrity and Confidentiality

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in such a manner that ensures an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

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In the present case, it is recorded that the personal data of the claimant, contained in the database of XXX, was improperly exposed to a third party, as a modified version of the claimant's payroll was disseminated in a WhatsApp group. This payroll contains the claimant's name and surname, ID number, and social security number.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement attributable to XXX, for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could entail the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with

administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a three-year limitation period for infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Proposal for sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the infringement in question is serious for the purposes of the GDPR and that it is appropriate to graduate the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

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- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered (paragraph a): due to the unauthorized access to the personal data of the claimant, as the publication of a simulation of the claimant's payroll has occurred, with the corresponding data including their name and surname, address, ID number, and social security number among others, in a WhatsApp group.

Furthermore, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

- The link of the infringer's activity with the processing of personal data (paragraph b): XXX is a company accustomed to processing personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 5.1.f) of the GDPR, allows for an initial sanction of €3,000 (three thousand euros).

VI

Security of processing

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

a) the pseudonymization and encryption of personal data;

b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;

c) the ability to restore the availability and access to personal data quickly in the event of a physical or

technical incident;

d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

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3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data following the instructions of the controller, unless required to do so by Union law or the laws of the Member States.

In this case, at the time of the occurrence of the personal data security breach, it is established that the union did not have appropriate security measures to prevent an employee from modifying a payroll and distributing it without anonymizing it, as personal data of the claimant was sent via a WhatsApp group, when the claimant was not a member of that union.

Therefore, from all the above, it has been established that XXX did not have adequate measures to prevent a situation like the one at hand from occurring.

In accordance with the evidence available in this initiation agreement for sanctioning proceedings, and without prejudice to the outcome of the investigation, it is considered that the known facts could constitute an infringement attributable to XXX for violation of Article 32 of the GDPR.

VII

Classification and qualification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could imply the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 2% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the statute of limitations, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

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"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a two-year statute of limitations: those that involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679." (...)

VIII

Proposal for sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement for sanctioning proceedings, and without prejudice to the outcome of the investigation, it is considered appropriate to grade the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

As aggravating factors:

The nature, severity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage and harm they have suffered (paragraph a): for not having adequate security measures to prevent an employee from disseminating personal data through a WhatsApp group without being authorized to do so.

As mitigating factors:

- Any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement (paragraph k): the union, after being notified of the claim, has adopted the following measures:

Apologized to the claimant

Appointed a DPO

Sent a communication about the DPO

Sent a circular to employees

Resent the information systems usage policy

Disseminated a guide of good practices

Provided training to its employees

Supplied a data protection policy

Furthermore, it is considered appropriate to grade the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

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- The connection of the infringer's activity with the processing of personal data (section b): XXX is a company accustomed to the processing of personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions established in Article 32 of the GDPR, initially allows for the imposition of a fine of €2,000 (two thousand euros).

IX

Imposition of Measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, without prejudice to what is established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of a further sanctioning

administrative procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against SINDICATO LIBRE DE TRANSPORTE, with NIF G80277239, for

- for the alleged infringement of Article 5.1.f) of the GDPR classified in Article 83.5 of the GDPR

- for the alleged infringement of Article 32 of the GDPR classified in Article 83.4 of the GDPR,

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be

- For the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of €3,000.00

- For the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of that regulation, an administrative fine of €2,000.00

without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to SINDICATO LIBRE DE TRANSPORTE, with NIF G80277239, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €4,000, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €4,000, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative to the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €3,000.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

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In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (4,000 euros or 3,000 euros), you must make the payment by depositing it into account no.

IBAN: ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are entitled.

Furthermore, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the agreement to initiate. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On October 25, 2023, the respondent has proceeded to pay the fine in the amount of 3,000 euros, making use of the two reductions provided for in the previously transcribed Agreement of initiation, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Agreement of Initiation.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall

be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202103980, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to SINDICATO LIBRE DE TRANSPORTE.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the

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National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

936-040822

Mar España Martí

Director of the Spanish Agency for Data Protection

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